

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #11	CCRB Case #: 201810817	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 12/20/2018 9:54 PM	Location of Incident: § 87(2)(b)	Precinct: 46	18 Mo. SOL 6/20/2020	EO SOL 2/4/2021	
Date/Time CV Reported Thu, 12/20/2018 9:45 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/31/2018 10:27 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Bryan Beach	23162	962247	046 PCT
2. POM Gregory Manning	25006	962570	046 PCT
3. An officer			046 PCT
4. LT Anderson Ortiz	00000	949424	046 PCT
5. POF Leslie Aucancela	01952	961628	046 PCT
6. POF Katherine Torres	04014	959309	046 PCT
7. POM Darian Wesler	31124	965903	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Carmelo Ayala	18668	962933	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Gregory Manning	Force: Police Officer Gregory Manning used physical force against § 87(2)(b)	
B.POM Gregory Manning	Force: Police Officer Gregory Manning used physical force against § 87(2)(b)	
C.POM Bryan Beach	Force: Police Officer Bryan Beach used physical force against § 87(2)(b)	
D.POM Bryan Beach	Force: Police Officer Bryan Beach used physical force against § 87(2)(b)	
E.LT Anderson Ortiz	Force: Lieutenant Anderson Ortiz used physical force against § 87(2)(b)	
F.POF Leslie Aucancela	Force: Police Officer Leslie Aucancela used physical force against § 87(2)(b)	
G. An officer	Abuse: An officer threatened § 87(2)(b) with the use of force.	
H.POF Katherine Torres	Force: Police Officer Katherine Torres used physical force against § 87(2)(b)	
I.POM Darian Wesler	Force: Police Officer Darian Wesler used physical force against § 87(2)(b)	

Case Summary

On December 20, 2018, § 87(2)(b) filed this complaint on behalf of § 87(2)(b) with IAB via telephone. § 87(2)(b) did not provide any contact information for § 87(2)(b). The complaint was received at the CCRB on December 31, 2018.

On January 3, 2019, a call was placed to § 87(2)(b) at the number listed for her in the IAB Log. § 87(2)(b) said she was in a meeting and would contact the investigation after 1 p.m. Between January 8, 2019 and January 28, 2019, five additional calls were placed to § 87(2)(b) as she did not return the first telephone call. Each time a voicemail was left requesting a call back. To date, these calls have not been returned.

On January 3, 2019, searches of the LexisNexis and NYS DMV databases were performed for § 87(2)(b) which revealed additional addresses.

On January 22, 2019 and February 4, 2019, searches of the CTS and CLEAR databases were performed, respectively. Both searches returned negative results.

Between January 3, 2019 and January 22, 2019, four please call letters were sent to § 87(2)(b) none of which was returned as undeliverable.

On January 3, 2019, searches of the BADS, LexisNexis, and NYS DMV databases were performed for § 87(2)(b). The BADS search returned a telephone number and address and the LexisNexis search returned an address. The NYS DMV search returned negative results.

Between January 3, 2019 and January 16, 2019, four calls were placed to the number listed in BADS for § 87(2)(b). Each time, the call went straight to voicemail and a voicemail was left requesting a call back. On January 22, 2019 and January 28, 2019, two additional calls were placed to the number listed in BADS. An automated message stated the number was not accepting calls.

On January 22, 2019, a search of the CTS database was performed for § 87(2)(b) which returned negative results.

On February 4, 2019, searches of the CLEAR and NYC DHS databases were performed. The CLEAR search returned two possible telephone numbers for § 87(2)(b). The NYC DHS returned negative results.

On February 4, 2019, a call was placed to the first number listed in the CLEAR search. The individual that answered stated the investigation had the wrong number. On the same day, a call was placed to the second number revealed in the CLEAR search. The line rang without an answer, but the voicemail box was full and thus a voicemail could not be left. On February 6, 2019, a second call was placed to this number. The individual that answered, § 87(2)(b), said that she had a child in common with § 87(2)(b) and that § 87(2)(b) was currently incarcerated.

Between January 3, 2019 and January 16, 2019, three please call letters were sent to two of the mailing addresses listed in database searches for § 87(2)(b) none of which was returned as undeliverable.

On February 7, 2019, a call was placed to § 87(2)(b)'s attorney, § 87(2)(b). § 87(2)(b) was unable to talk at the time of the call and requested a call back later in the afternoon. A call was placed to § 87(2)(b) later in the day, but he did not answer. A voicemail was left requesting a call back. On February 11, 2019, a second call was placed to § 87(2)(b) who said that he wanted to speak with § 87(2)(b) before allowing § 87(2)(b) to provide a statement. On February 21, 2019, a third call was placed to § 87(2)(b) who said he planned to speak to § 87(2)(b) the next day at § 87(2)(b)'s scheduled court appearance. On February 26, 2018, § 87(2)(b) contacted the investigation and said he did not want § 87(2)(b).

§ 87(2)(b) to provide a statement until the conclusion of his criminal case. On February 27, 2019, an email was sent to § 87(2)(b) detailing the reopen process.

§ 87(2)(g)
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Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date